

25STCV18663 25STCV18663

County: los-angeles

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Department: 513

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Case Number: 25STCV18663 Hearing Date: July 31, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Martin Lara

, et al.;

Plaintiffs,

vs.

FCA US, LLC

, et al.,

Defendants.

Case No.:

25STCV18663

Hearing Date:

July 31, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Demurrer
to Complaint

(2) MOTION
TO STRIKE

MOVING PARTIES: Defendants FCA US, LLC and Bravo Chrysler
Dodge Jeep Ram of Alhambra

RESPONDING

PARTY: Plaintiffs Martin Lara and Martha Alvarez

(1) Demurrer
to Complaint

(2) Motion
to Strike Portions of Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this demurrer and motion.

DISCUSSION

Demurrer to Complaint

Defendants FCA

US, LLC and Bravo Chrysler Dodge Jeep Ram of Alhambra ("Defendants") demur to the fifth cause of action for negligent repair and sixth cause of action for fraudulent concealment asserted in the Complaint filed by plaintiffs Martin Lara and Martha Alvarez ("Plaintiffs").

The court overrules

Bravo CDJR's demurrer to the fifth cause of action for negligent repair because it states facts sufficient to constitute a cause of action since (1) the court finds that it is not barred by the economic loss rule because it is based on Bravo CDJR's breach of its duty to use ordinary care and skill in the storage, preparation, and repair of the subject vehicle in accordance with industry standards (Compl., ¶ 62), and therefore does not arise from any underlying contract between Plaintiffs and Envision Ford, and (2) Plaintiffs have sufficiently alleged that Envision Ford's breach of its duties proximately caused Plaintiffs' damages (Compl., ¶ 63). (Code Civ. Proc., § 430.10, subd. (e); Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923; Berkley v. Dowds (2007) 152 Cal.App.4th 518, 527 ["Ordinarily, negligence may be alleged in general terms"].)

The court sustains

Defendants' demurrer to the sixth cause of action for fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiffs have not alleged that Defendants had a duty to disclose the facts regarding the subject defects in the vehicle, including because Plaintiffs have not alleged facts establishing that they purchased the vehicle directly from Defendants or its agent and that, during the course of those direct dealings, Defendants concealed facts regarding the defects from Plaintiffs. (Code Civ. Proc., § 430.10, subd. (e); Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose “presuppose a preexisting relationship between the parties” which “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”]; Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers].)

The burden is on the

plaintiff “to articulate how it could amend its pleading to render it sufficient.” (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

The court finds that Plaintiffs have not articulated

the facts that they could allege to render the sixth cause of action against FCA sufficient and therefore sustains the demurrer without leave to amend.

Motion to Strike

Defendants move

the court for an order striking from the Complaint Plaintiffs' prayer for punitive damages.

The court grants

Defendants' motion to strike Plaintiffs' prayer for punitive damages because Plaintiffs have not alleged facts establishing that Defendant is guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) The court grants Defendants' motion without leave to amend because Plaintiffs have not articulated the facts that they could allege to render their claim for punitive damages sufficient against Defendant. (Palm Springs Villas II Homeowners Assn., Inc., supra, 248 Cal.App.4th at p. 290.)

ORDER

The court

SUSTAINS defendants FCA US, LLC and Bravo Chrysler Dodge Jeep Ram of Alhambra's demurrer to plaintiffs Martin Lara and Martha Alvarez's sixth cause of action without leave to amend.

The court OVERRULES

defendants FCA US, LLC and Bravo Chrysler Dodge Jeep Ram of Alhambra's demurrer to plaintiffs Martin Lara and Martha Alvarez's fifth cause of action.

The court GRANTS defendants

FCA US, LLC and Bravo Chrysler Dodge Jeep Ram of Alhambra's motion to strike without leave to amend. The court orders that plaintiffs Martin Lara and Martha Alvarez's prayer for punitive damages (set forth on page 12, section e, line 7 of the Complaint) is stricken.

The court orders

defendants FCA US, LLC and Bravo Chrysler Dodge Jeep Ram of Alhambra to file an answer to plaintiffs Martin Lara and Martha Alvarez's Complaint within 10 days of the date of this order.

The court orders defendants

FCA US, LLC and Bravo Chrysler Dodge Jeep Ram of Alhambra to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 31, 2026

Robert B. Broadbelt III

Judge of the Superior Court